

Constitutional Law 178

Separation of Powers

Dr Christiaan van Schalkwyk

christiaanvs@sun.ac.za

Chair in Urban Law and Sustainability

Structure: Separation of Powers

- 1. Introduction**
- 2. Concepts & principles**
- 3. Historical context**
- 4. Application in South Africa**
- 5. Counter-majoritarian dilemma & deference**
- 6. Conclusion**
- 7. Class activity**

1. Introduction

- Our focus is on:
 - Analysing the model of separation of powers
 - Understanding the principles, concepts and historical context
 - Applying it in the South African context
 - Discussing the issues and consequences
- Constitutional context + **transformative constitutionalism**
 - **Accountability** (s 1 d)
 - **Constitutional supremacy** (s 2)
- Don't get bogged down in the detail
- Practical application exercise at the end



2. Concepts & principles

- **Constitutions as limiting public power/state coercion**
 - Other functions too, of course
 - Human rights to individuals and groups (Ss 9 - 35)
 - Guiding judicial decision making (s 39)
 - Administrative make-up of the state (e.g. Schedules 4 and 5)
- **Substantive and procedural ways to limit state power**
 - **Rights = Substantive**
 - Examples?



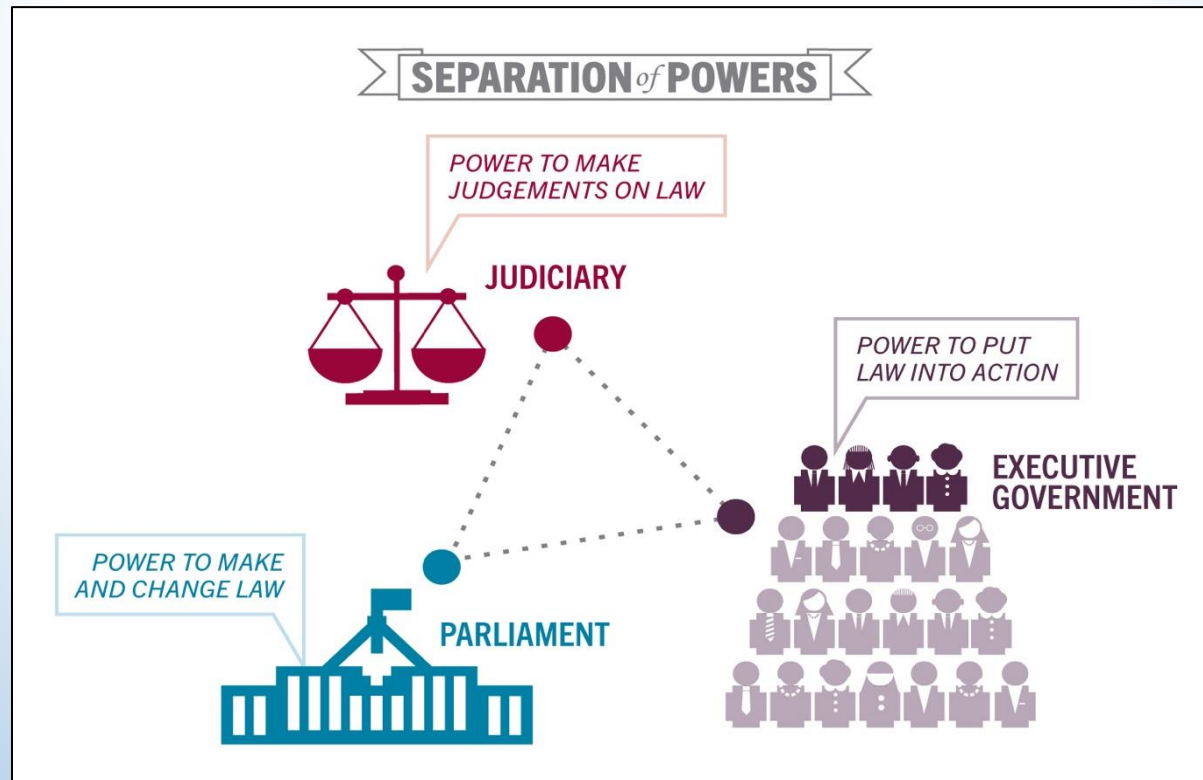
2. Concepts & principles

- **Procedural limits to public power**
 - Ways/Manners in which government exercises public power
- **Separation of powers = Procedural**
 - Divides government into 3 branches
 - 1.) Executive
 - 2.) Legislature
 - 3.) Judiciary
 - *not a hierarchy



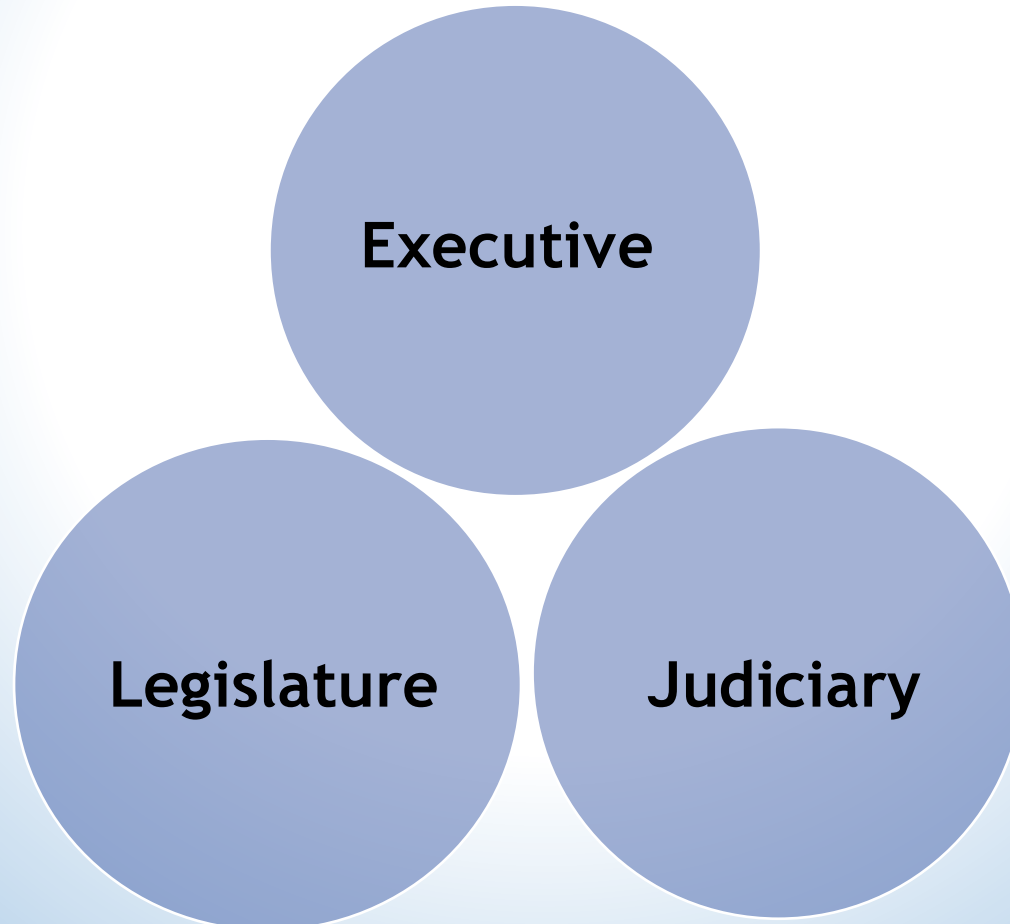
2. Concepts & principles

- **Procedural limits to public power**
 - Ways/Manners in which government exercises public power
- **Separation of powers = Procedural**
 - Divides government into 3 branches



2. Concepts & principles

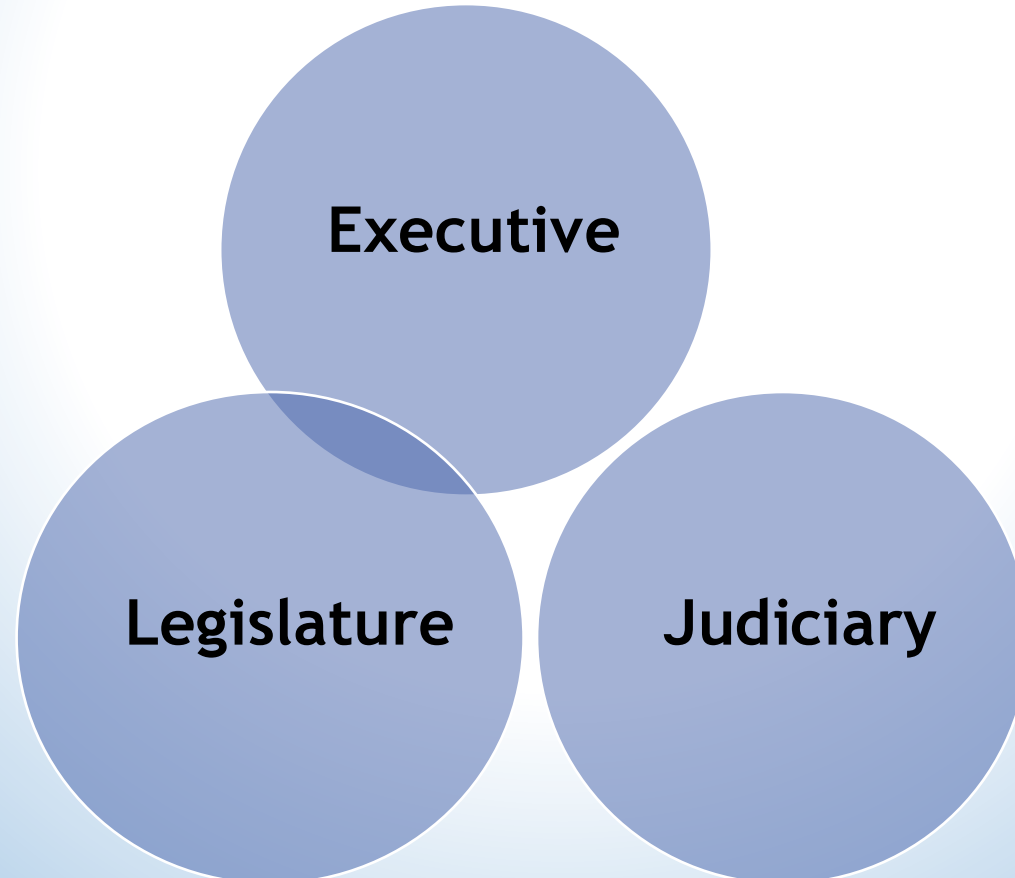
- **Separation of powers**
 - Divides government into 3 branches → 'Classical Model'



2. Concepts & principles

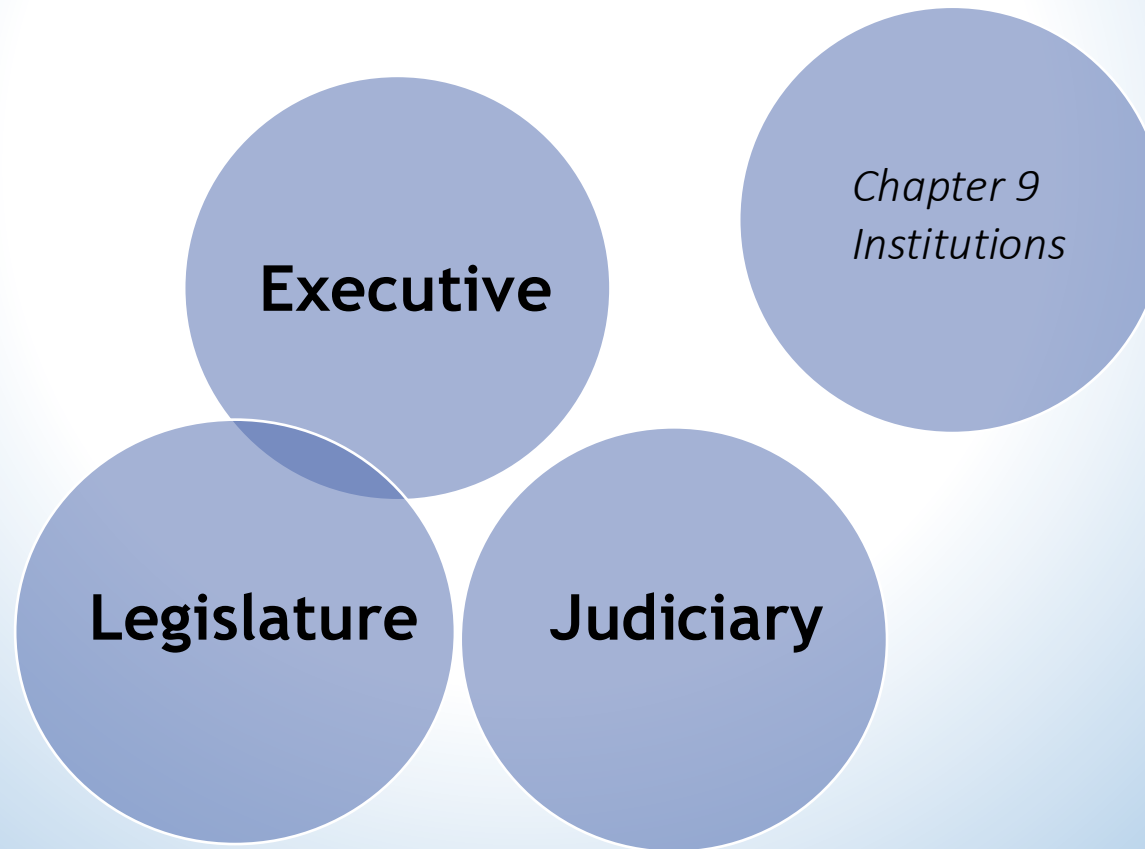
- **Separation of powers**

- Divides government into 3 branches → But also **overlaps** = South Africa
- Why no overlap with the **judiciary**? Protect **judicial independence**



2. Concepts & principles

- **Separation of powers**
 - Divides government into 3 branches → But also **overlaps** = South Africa

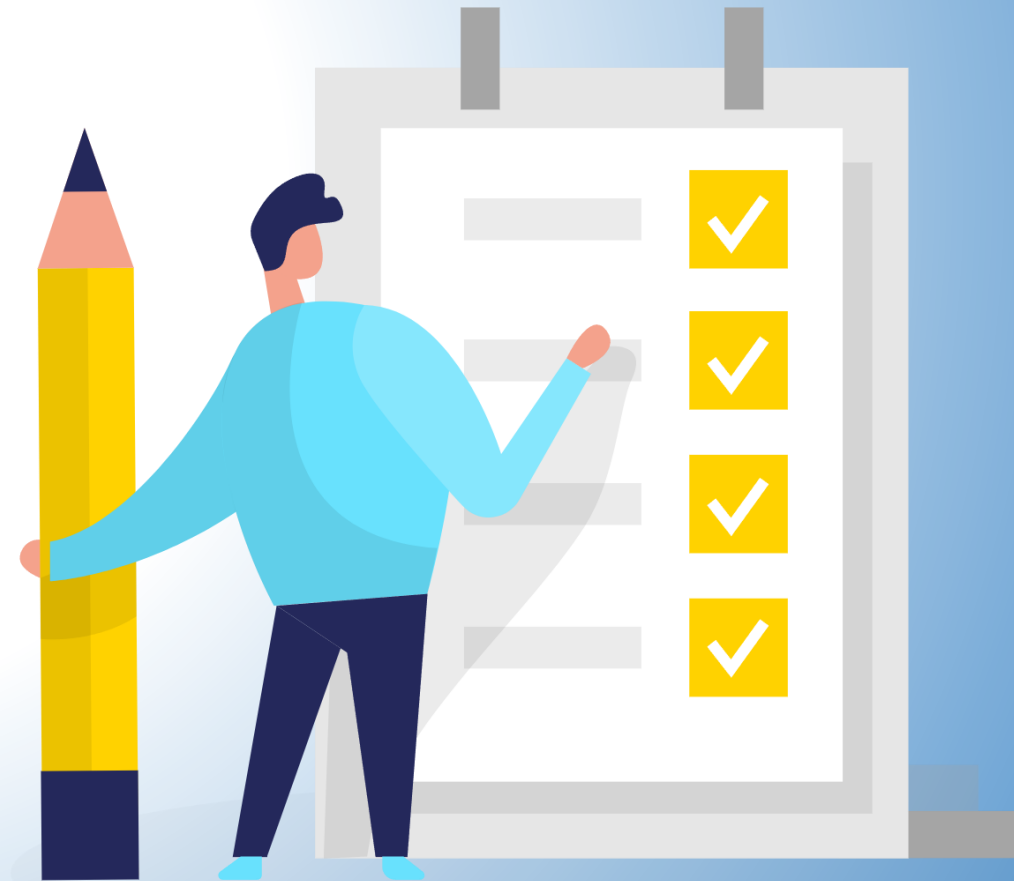


2. Concepts & principles

- **Separation of powers**
 - Avoids concentration of power
 - E.g. Executive takes on law-making power
 - Promotes specialisation
 - E.g. Qualified and trained judges
- **Modern conceptions closely interlinked with human rights**
 - Procedural ↔ Substantive

2. Concepts & principles

- **Four principles**
 - 1.) Division of government power
 - 2.) Separation of functions
 - 3.) Separation of personnel
 - 4.) System of checks and balances



3. Historical background

- Origins in 17th Century enlightenment political philosophy
 - **though perhaps an oversimplification*
 - Development from **Hobbes**, to **Locke**
 - To **Charles Badron de Montestuiieu**, to **Jean Jacques Rosseau**, and **USA**
 - Specific histories of monarchical and tyrannical governments
 - Rise of **liberalism** and **negative conceptions** of freedom
 - Rise of constitutionalism
- In principle the same, but **incremental** developments
 - E.g. overlaps; new public institutions (*see Ch 9 institutions)

3. Historical background

- Why is historical background important?



4. Application in South Africa

- No express mention in Final Constitution
 - **Constitutional Principle VI** from Interim Constitution
 - Constitutional Court = Implicit in Final Constitution
- South African model
 - PoD: No universal model
 - Historical understanding and appreciation
 - E.g. Westminster system & parliamentary sovereignty in apartheid era
 - CC in *De Lange v Smuts*

4. Application in South Africa

- Legislature
 - Chapter 4 of Constitution
 - National Assembly (NA) & National Council of Provinces



4. Application in South Africa

- Legislature
 - Overlap with executive **rationale** = Policy power to legislation
 - Inherited from Westminster system
- *Executive Council of Western Cape Legislature v President of the Republic of South Africa*
 - **Delegation** of law making authority
 - Permissible (to some degree)
 - Limitations to nature + extent
 - But specialisation, democracy, and concentration of power?

4. Application in South Africa

- **Legislature**
 - **Chapter 4 of Constitution**
 - National Assembly (NA) & National Council of Provinces
 - Members of Parliament
 - Overlap with executive = Policy power to legislation
- *Executive Council of Western Cape Legislature v President of the Republic of South Africa*
 - **Delegation** of law-making authority
 - Permissible (to some degree)
 - Limitations to nature + extent
 - But specialisation, democracy, and concentration of power?

4. Application in South Africa

- Executive
 - Ss 84 and 85 of Constitution
 - **Cabinet** composition of Ministers
 - **Obligation** to select cabinet from NA
 - Commissions of enquiry
- NA exercises oversight
 - Can **recall** executive
 - Initiate **votes of no confidence** (impeachment, s 89)
 - Accountability to NA - s 55(2) of Constitution
 - Oversight of the executive and hold it accountable, particularly in the **implementation** of legislation

4. Application in South Africa

- Judiciary
 - Chapter 8 of Constitution
 - **Hierarchy** of courts
 - **Appointment** of judges - Judicial Services Commission
 - Manner of appointment involves all 3 branches
 - Ensures (or is supposed to) **impartiality** and independence



4. Application in South Africa

- Judicial review
 - S 172 provides for **competent** courts to **declare** that any law **inconsistent** with the Constitution is **invalid** to the extent of its decision whether an Act of Parliament, a provincial Act or conduct of the President is constitutional (section 167(5))
 - Certain principles in the Constitution to limit litigation of legislature and executive against one another



4. Application in South Africa

- **Judicial independence and impartiality**
 - CC confirmation in *SA Association of Personal Injury Lawyers v Heath*
 - JSC code of conduct and removals
 - Power to initiate proceedings for the removal of judges via the JSC (and involvement of 3 branches)
 - Only possible on limited grounds of **incapacity, gross incompetence or gross misconduct**
 - E.g. Removal of J Hlope by Pres Ramaphosa

4. Application in South Africa

- Chapter 9 Institutions
 - Unique set of institutions that do **not fall within classic model**
 - *E.g. Public Protector; South African Human Rights Commission*
 - Also exercise oversight
 - But due to falling **outside** 3 branches, in unique position
 - **Independence** and introduces **another layer of checks and balances**
 - Problems? Critiques?

Structure: Separation of Powers

- ~~1. Introduction~~
- ~~2. Concepts & principles~~
- ~~3. Historical context~~
- ~~4. Application in South Africa~~
5. Counter-majoritarian dilemma & deference
6. Conclusion
7. Class activity

Quick recap

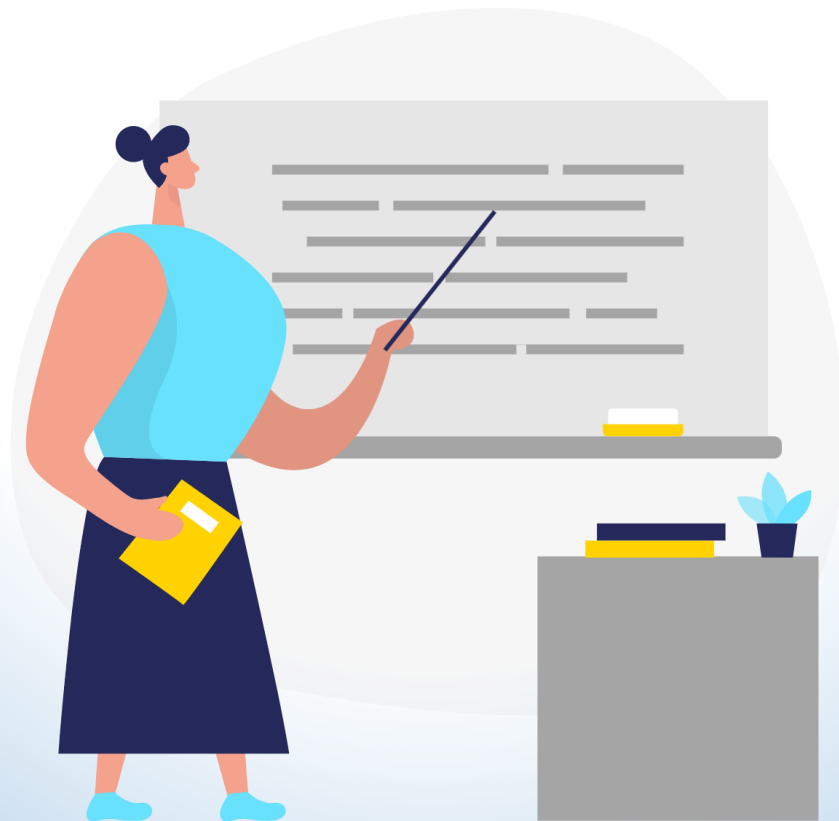
- Procedural limits to public power
- *Trias politica* or 3 branches
 - Executive
 - Legislature
 - Judiciary
- No universal model of SoP
 - **Unique features** of SA model
 - Legislature and executive overlap; Chapter 9 institutions
- Principles
 - Division, functional, personnel
 - Oversight (checks and balances)
 - E.g. NA calling executive; Judicial review

5. Counter-majoritarian dilemma

- **Focus:** Judiciary
- Parliamentary sovereignty → constitutional supremacy
- Power of judicial review (s 172)
 - **Function** to interpret law
 - BUT sometimes interpreting law requires adjustments, declarations of invalidity, and providing remedies
 - Hence, **practical problems** arise
 - Judges can make law
 - OR declare law supported by a majority invalid
 - Judges not (**democratically**) elected representatives

5. Counter-majoritarian dilemma

- *We spoke yesterday of how the CC has interpreted Separation of Powers*
 - *Problems?*



5. Counter-majoritarian dilemma

- Judicial decisions against the **political will**
 - *Similarly, we spoke yesterday how impeachment has built-in safeguards against abuse as a political move*
- Encroachment of Judiciary on domain of Legislature and Executive - permissible to some **degree**
- Question of **nature + extent**
 - Spectrum of responses
 - Some view irreconcilable
 - Some as necessary limit in democracy
 - Some as legitimizing (camp in which SA mostly falls)

5. Counter-majoritarian dilemma

- Responses to the following, in **favour of judicial review**:
- Judicial decisions based on personal, political, religious opinion?
 - Safeguards
 - **Substantive**: *Starre decisis*, s 39 of Constitution
 - **Procedural**: Appeal & review
- Majoritarian politics not *necessarily* representative
 - Pluralism & proportional representation
 - Human rights beneficiaries - everyone, citizens, permanent residents etc.
- Some as necessary limit in democracy
- Some as legitimizing (camp in which SA mostly falls)

5. Counter-majoritarian dilemma

- Responses to the following, in **favour of judicial review**:
- Judicial decisions based on personal, political, religious opinion?
 - There are built-in safeguards
 - **Substantive**: *Starre decisis*, s 39 of Constitution
 - **Procedural**: Appeal & review

5. Counter-majoritarian dilemma

- Responses to the following, in **favour of judicial review**:
- Majoritarian politics not *necessarily* representative
 - **Pluralism** & proportional representation
 - Human rights **beneficiaries** - everyone, citizens, permanent residents etc.
 - Independence of judiciary
- **Specialisation aspect** of separation of powers
- Courts can **enhance** democracy
 - Deliberative democracy, contestatory politics, dialogic SoP
 - **Critical legal theorists**: Courts perpetuate neo-liberal paradigm

5. Deference

- Focus: Judiciary
- ‘Paying deference to the legislature and executive’
- **Non-interference** with legislative and executive domain
 - Recognition of **functional divisions**
 - Question of a **policy** and **political** nature, not constitutional
 - Application of counter-majoritarian dilemma
 - Most pertinent e.g. budgeting, allocation of resources
- **But** - transformative constitutionalism?

6. Conclusion

- SoP provides framework of government functioning
- The classical model is adapted based on
 - Historical and normative context
 - Political system
- **While focus is on functionality and efficiency**
- **Oversight and accountability are the guiding principles**
 - Particularly in the SA context
- Know the **mechanisms** each branch of government has
- Understand **problems in applying** the SoP model

7. Class activity

- Division of class into: Executive, Legislature, Judiciary
- We are going to look at a **factual circumstance**
- Then explain how you would **exercise** oversight over the other branches

7. Class activity

The **Minister of Forestry, Fisheries and Environment** (the executive) has approved plans for the construction of a new 1200 MW coal-fired powerplant. This comes after a meeting of the Minister with select foreign energy companies. Only a small environmental impact assessment was carried out.

The **Integrated Resource Plan (IRP)** and **Carbon Act (CA)** developed by parliament (the legislature) makes provision for coal fired powerplants. This is provided the environmental impacts are not serious, and jobs are prioritised for South Africans. Some MPs that drew up the policy and act have shares in the energy companies that attended the meeting. The Minister was not aware of this.

7. Class activity

A group of concerned environmentalists have taken the matter to court (the judiciary). They argue that a new coal-fired powerplant infringes their environmental right in section 24 of the Constitution. Further, they argue government should be prioritising building new cleaner forms of energy production in the IRP and the CA.

7. Class activity

Questions

- **Executive:**
 - How would you exercise oversight over the legislature?
 - What would your response be in court to justify your decision to approve the construction?
- **Legislature**
 - How would you exercise oversight over the executive?
 - What would your response be in court to justify the provisions of the IRP and the CA?
- **Judiciary**
 - How would you proceed to review the decision of the Minister?
 - How would you proceed to review the contents of the IRP and the CA?